DE-226

ATTORNEY OR PARTY WITHOUT ATTORNEY *(name, address, and State Bar number):*
After recording, return to:

TEL NO.: FAX NO. (optional):

E-MAIL ADDRESS *(optional):*

ATTORNEY FOR (name):

SUPERIOR COURT OF CALIFORNIA, COUNTY OF

STREET ADDRESS:

MAILING ADDRESS:

CITY AND ZIP CODE:

BRANCH NAME:

FOR RECORDER'S USE ONLY

ESTATE OF *(Name):*

DECEDENT

CASE NUMBER:

☐ **SPOUSAL** ☐ **DOMESTIC PARTNER** **PROPERTY ORDER**

FOR COURT USE ONLY

1. Date of hearing: Time:
   Dept.: Room:

THE COURT FINDS

2. All notices required by law have been given.
3. Decedent died on *(date):*
   a. ☐ a resident of the California county named above.
   b. ☐ a nonresident of California and left an estate in the county named above.
   c. ☐ intestate. ☐ testate.
4. Decedent's ☐ surviving spouse ☐ surviving registered domestic partner is *(name):*

THE COURT FURTHER FINDS AND ORDERS

5. a. ☐ The property described in Attachment 5a is property passing to the surviving spouse or surviving registered domestic partner named in item 4, and no administration of it is necessary.
   b. ☐ See Attachment 5b for further order(s) respecting transfer of the property to the surviving spouse or surviving registered domestic partner named in item 4.
6. ☐ To protect the interests of the creditors of (business name): , an unincorporated trade or business, a list of all its known creditors and the amount owed each is on file.
   a. ☐ Within *(specify):* days from this date, the surviving spouse or surviving registered domestic partner named in item 4 shall file an undertaking in the amount of $
   b. ☐ See Attachment 6b for further order(s) protecting the interests of creditors of the business.
7. a. ☐ The property described in Attachment 7a is property that belonged to the surviving spouse or surviving registered domestic partner under Family Code section 297.5 and Probate Code sections 100 and 101, and the surviving spouse's or surviving domestic partner's ownership upon decedent's death is confirmed.
   b. ☐ See Attachment 7b for further order(s) respecting transfer of the property to the surviving spouse or surviving domestic partner.
8. ☐ All property described in the *Spousal or Domestic Partner Property Petition* that is not determined to be property passing to the surviving spouse or surviving registered domestic partner under Probate Code section 13500, or confirmed as belonging to the surviving spouse or surviving registered domestic partner under Probate Code sections 100 and 101, shall be subject to administration in the estate of decedent. ☐ All of such property is described in Attachment 8.
9. ☐ Other *(specify):*

☐ Continued in Attachment 9.

10. Number of pages attached:

Date:

JUDICIAL OFFICER

☐ SIGNATURE FOLLOWS LAST ATTACHMENT

Form Adopted for Mandatory Use
Judicial Council of California
DE-226 [Rev. January 1, 2015]

SPOUSAL OR DOMESTIC PARTNER PROPERTY ORDER
(Probate—Decedents Estates)

Family Code, § 297.5;
Probate Code, § 13656
www.courts.ca.gov

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